LEEROY REUBEN MURERA
versus
PORTCULLIS (PRIVATE) LIMITED t/a FINANCIAL CLEARING BUREAU

HIGH COURT OF ZIMBABWE
MUSITHU J

HARARE, 13 October 2025 & 19 June 2026

Opposed application to compel clearance from financial blacklisting

F Nyamayaro, for the applicant
Mr T Tivader, for the respondent

MUSITHU J:

[1] The applicant approached the court for an order compelling the respondent to expunge his name and particulars from its database. The application arises from the respondent's continued retention and dissemination of information relating to criminal allegations that were levelled against the applicant in 2023. The applicant contends that the listing was unlawful because the allegations did not culminate in a criminal conviction and no civil judgment was ever entered against him.

[2] The respondent opposed the application and maintained that it was entitled to retain the information as part of its operations as a credit reference bureau. The respondent is in the business of collecting, storing and disseminating public information on persons who are adjudged to ineligible to open bank accounts or utilise various credit facilities due to outstanding adverse criminal or civil judgments.

Background Facts

[3] The applicant was arrested in or about June 2023 on allegations of hacking in contravention of s35 of the Cyber and Data Protection Act *[Chapter 12:07]*. He was subsequently placed on remand pending trial.

[4] The matter did not proceed to trial. In November 2023, further remand was refused. It is common cause that no criminal conviction was recorded against the applicant. It is also equally common cause that no civil judgment exists against him.

[5] In June 2024, the applicant sought to open a bank account with a local financial institution. Following routine checks, he was advised that he could not open the account because his particulars appeared on the respondent's database.

[6] The applicant thereafter addressed correspondence to the respondent, querying the basis upon which his name continued to appear on the database notwithstanding the absence of a criminal conviction or civil judgment. The respondent advised that the refusal of further remand did not alter the status of the record because the criminal matter had not been finalised and the State retained the option of proceeding by way of summons.

[7] Aggrieved by that position, the applicant instituted the present proceedings.

Submissions by the parties

[8] At the hearing of the matter, *Mr Nyamayaro* appearing for the applicant, submitted that the respondent must be ordered to expunge the applicant's name from its database. He also stated that the respondent, although the applicant was in the business of collecting and storing information in its database, it had no reason to blacklist the applicant because further remand was refused in the criminal matter in November 2023.

[9] The applicant argued that he was never tried and convicted of any offence and that there existed no civil judgment against him. The applicant only discovered this last year when he went to open a bank account, and he was told that he was blacklisted and could not open the bank account. He averred that the respondent had no lawful basis for retaining and disseminating information that effectively portrayed him as unsuitable to access financial services.

[10] The applicant further submitted that the listing had prejudiced his ability to access banking facilities and it had also adversely affected his financial affairs. The applicant further pointed out that the respondent's conduct interfered with his rights enshrined in s 70 (1) (a) of the Constitution, which presumed innocent until proven guilty. It was argued that the respondent was not supposed to blacklist innocent people.

[11] The applicant further submitted that the respondent did not disclose the charge that he was facing. It was not clear how the respondent acquired the information that it used to blacklist the applicant.

[12] In response, Mr *Tivader* for the respondent, submitted that the respondent was an independent credit reference bureau operating on behalf of financial institutions and members of the Zimbabwe Financial Clearing Association. The respondent maintained information that it shared with its clients.

[13] Its function was to collect, maintain, and disseminate information obtained from subscriber institutions and the public domain. The respondent further maintained that it did

not make judgments regarding the information supplied to it but merely recorded and disseminated information received in good faith.

[14] The respondent submitted that the applicant had no evidence as to why its credit application was refused. Instead, the applicant rushed to court before engaging with the respondent. The applicant ought to have pursued some other alternative ways of resolving the dispute.

[15] The respondent further argued that the criminal matter involving the applicant was not finalised because the State could still proceed by way of summons. It contended that it remained obliged to retain the information and that the applicant's complaint was misplaced. The respondent also relied on the case of *Pazvakavambwa v Portcullis (Private) Limited t/a Financial Clearing Bureau* HH 175/11 as authority for the legality of its operations.

Issue for determination

[16] The issue for determination is whether the respondent was lawfully entitled to retain and disseminate information relating to unresolved criminal allegations against the applicant in circumstances where no criminal conviction or civil judgment exists. Put differently, the issue was also whether there existed a lawful basis for the blacklisting of the applicant.

The Analysis

[17] Section 70(1) (a) of the Constitution provides that every person accused of an offence has the right to be presumed innocent until proven guilty. The presumption of innocence is one of the cornerstones of our constitutional order. It is not a mere procedural formality. It is a substantive constitutional guarantee designed to protect individuals from adverse consequences flowing solely from allegations that have not been proved in a court of law. The right serves to ensure that a person is not treated, either by the State or by private actors exercising public-facing functions, as though he were guilty before a competent court has made such a determination.

[18] The importance of the presumption of innocence remains with an accused person throughout the trial and cannot be displaced unless the State adduces sufficient evidence proving guilt beyond a reasonable doubt. This foundational constitutional position is firmly anchored in *S v Ndhlovu* 1980 ZLR 96(S). This position was explicitly reaffirmed in *S v Banana* 2000 (1) ZLR 607 (S), where the court emphasized that even specialized cautionary rules are abandoned, the State is never absolved from its absolute duty to establish every essential element of the offence to the criminal standard.

[19] An accused persons enjoys the constitutional right to be presumed innocent until proven guilty. The burden rests upon the State to establish every essential element of the offence beyond a reasonable doubt. The accused bears no obligation to prove his innocence and is entitled to the benefit of any reasonable doubt arising from the evidence.

[20] In the present matter, it is common cause that the applicant has not been convicted of any offence. The allegations upon which his listing was founded were never tested in a criminal trial. No finding of guilt was made by any court. The respondent argued that the matter remained pending because the State could still proceed by way of summons. Whilst that proposition may be legally correct, it does not alter the applicant's present legal status. The applicant remains a person against whom no conviction has been recorded, and his blacklisting based on mere allegations cannot be legally sustained. The possibility of future prosecution cannot operate as a substitute for a conviction that does not presently exist.

[21] The respondent's entitlement to operate a credit reference bureau is not in dispute. In the *Pazvakavambwa* v *Portcullis (Private) Limited t/a Financial Clearing Bureau* HH 175-11, it was held that:

> "An act is contrary to public policy only if it violates notions of elementary justice or constitutes a palpable inequality that would offend Zimbabwe's conception of justice"

The above authority recognised the legitimacy of credit reference bureaus and their role in facilitating the exchange of information among financial institutions. It does not, however, provide blanket authority for the retention and dissemination of all forms of information irrespective of their nature, accuracy, relevance or legal effect.

[22] However, the facts of the present matter are materially distinguishable from those in *Pazvakavambwa* case. In that matter, the information complained of related to a conviction which was not disputed. The issue before the court was concerned with the retention period of information already lawfully recorded. In the present matter, there was no conviction at all. The question is whether unproven allegations may continue to be retained and disseminated in a manner that adversely affects the applicant's ability to access financial services.

[23] The respondent did not identify any statutory provision authorising the indefinite retention and dissemination of unresolved criminal allegations as a basis for the continued blacklisting of the applicant. Its justification rests primarily on contractual obligations owed to subscriber institutions. Whilst those contractual arrangements may regulate the

respondent's relationship with its subscribers, they do not, in themselves, constitute a lawful basis for limiting rights enjoyed by persons who are not parties to those agreements.

[24] The respondent further averred that even if the applicant was ultimately acquitted, the information would remain on its database and would merely be supplemented by a notation reflecting the acquittal. That position reveals the difficulty inherent in the respondent's approach. If an acquittal does not result in the removal of the adverse listing, then the listing ceases to be dependent upon proof of wrongdoing and becomes attached to the mere existence of an allegation. Such an approach is difficult to reconcile with the constitutional presumption of innocence. It would permit adverse consequences to continue flowing from allegations notwithstanding a judicial determination that the allegations were not proved. The respondent's administrative arrangements cannot, with due respect, supplant the constitutional order which entrenches the applicant's presumption of innocence until proven guilty. That would be unlawful.

[25] The respondent also argued that there was no evidence that the applicant would necessarily have been granted banking facilities had his particulars not appeared on the database. Whilst that may be so, the evidence establishes that the applicant's particulars were in fact retrieved from the respondent's database and formed part of the information considered by the financial institution in making its decision. The respondent's business model is based on disseminating information to financial institutions for risk assessment purposes. The adverse consequences flowing from the listing are therefore neither speculative nor remote. They are real.

[26] Section 86(2) of the Constitution provides that limitations of constitutional rights must be fair, reasonable, necessary, and justifiable in an open and democratic society. The respondent has not demonstrated how the continued dissemination of unproven allegations against the applicant satisfies that constitutional threshold. In the absence of a conviction, civil judgment or other lawful determination against the applicant, the continued retention and dissemination of the impugned information constitutes an unjustifiable limitation of the applicant's constitutional rights. The respondent's contentions are, therefore, legally unsustainable.

Conclusion

[28] Having read the papers and heard submissions from both parties, the court determines that the applicant remains entitled to the constitutional presumption of innocence guaranteed by s 70 (1) (a) of the Constitution. Accordingly, I am satisfied that the respondent has failed

to establish a lawful basis for the continued retention and dissemination of information relating to unresolved criminal allegations against the applicant. The continued listing of the applicant is unlawful and cannot be sustained.

Costs

[29] The general rule is that costs follow the event. The applicant has been compelled to approach the court to vindicate his rights. The respondent persisted in maintaining the applicant's listing notwithstanding the absence of any conviction or civil judgment. Be that as it may, the matter raised an important legal question, and for that reason it is befitting that the respondent be ordered to pay costs of suit on the ordinary scale.

Resultantly, it is ordered that:

1. The respondent be and is hereby ordered to expunge the applicant's name and particulars from its database within seven (7) days of this order, failing which the Sheriff of Zimbabwe is authorised to effect the process through a suitably qualified technician.
2. The respondent shall bear the applicant's costs of suit on the ordinary scale.

MUSITHU J……

Farai Nyamayaro Law Chambers, legal practitioners for the applicant
Atherstone & Cook, legal practitioners for the respondent